AQUARIA AI LLC

PRIVACY POLICY

Effective Date: March 9, 2026

Aquaria AI LLC ("Aquaria AI," "we," "us," or "our"), a limited liability company organized under the laws of the State of New Jersey, is committed to protecting the privacy of users of the Aquaria AI mobile and web application (the "App"). This Privacy Policy explains what information we collect, how we use and share it, how we protect it, and the rights and choices available to you.

By downloading, installing, accessing, or using the App, you acknowledge that you have read and understood this Privacy Policy and consent to the data practices described herein. If you do not agree to this Privacy Policy, you must not use the App.

This Privacy Policy is incorporated by reference into and forms part of our Terms and Conditions of Use. Capitalized terms not defined herein have the meanings given to them in the Terms and Conditions.

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1. INFORMATION WE COLLECT

We collect information in the following categories depending on how you use the App:

1.1 Information You Provide Directly

Category of Data	Examples	Purpose
Account Information	Name, email address, username, password	Account creation and authentication
Profile Information	Display name, bio	Personalization of your experience
Animal Data	Species, age, tank size, water parameters, health notes	AI-generated care recommendations
Uploaded Images	Photos of tanks, fish, plants, equipment	AI-generated recommendations and, for publicly shared images, promotional use
Care Logs	Feeding records, water changes, medication notes	Scheduled reminders and care tracking
Communications	Messages sent to our support team	Customer support and service improvement

1.2 Information Collected Automatically

Category of Data	Examples	Purpose
Device Information	Device type, OS version, unique device identifiers	App functionality and troubleshooting
Usage Data	Features accessed, time spent, tap/click patterns	App improvement and analytics
Log Data	IP address, access times, error logs, crash reports	Security monitoring and diagnostics
Notification Tokens	Device push notification tokens	Delivery of care reminders and alerts
Location Data	Approximate location (if permitted)	Climate-based care recommendations

1.3 Information From Third Parties

We may receive limited information from third-party services integrated into the App, such as authentication providers (e.g., Sign in with Apple, Google Sign-In), analytics platforms, and AI model providers. We do not purchase or acquire personal data from data brokers.

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2. HOW WE USE YOUR INFORMATION

We use the information we collect for the following purposes:

2.1 To Provide and Operate the App

- Generate AI-powered care recommendations tailored to your animals and tank conditions;
- Deliver scheduled notifications, reminders, and care alerts;
- Maintain and authenticate your account;
- Process and store your care logs, animal and plant profiles, and uploaded images on our servers; and
- Enable communication between you and our support team.

2.2 To Improve and Develop the App

- Analyze anonymized usage patterns to improve App features and performance;
- Train, fine-tune, and improve our AI models using anonymized or aggregated data;
- Conduct research and development of new features using anonymized or aggregated data; and
- Monitor for bugs, errors, and security vulnerabilities.

2.3 For Marketing and Promotional Purposes

- Use publicly shared photographs and images in marketing materials, including social media, advertising, and press content, as further described in Section 5;
- Send you product updates, newsletters, and promotional communications (where you have opted in); and
- Measure the effectiveness of our marketing campaigns.

2.4 For Legal and Safety Purposes

- Comply with applicable laws, regulations, and legal process;
- Enforce our Terms and Conditions;
- Protect the rights, property, or safety of Aquaria AI, our users, or others; and
- Detect, investigate, and prevent fraudulent, unauthorized, or illegal activity.

2.5 AI Model Training — Opt-Out

We may use your data, including animal and plant care information and, if extended to image processing in the future, uploaded images, in anonymized or aggregated form to improve our AI models. If you wish to opt out of your data being used for AI model training purposes, you may do so by contacting us at info@aquaria-ai.com or adjusting your preferences in the App settings where available. Opting out does not affect our use of your data to provide the core services of the App.

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3. HOW WE SHARE YOUR INFORMATION

We do not sell your personal information to third parties. We may share your information in the following limited circumstances:

3.1 Service Providers

We share information with third-party vendors and service providers who assist us in operating the App, including:

- Third-party AI model providers that process your animal and plant care data to generate recommendations. Uploaded images are not currently transmitted to third-party AI providers, though we reserve the right to do so in the future as described in Section 3.2;
- Cloud hosting and infrastructure providers that store your data;
- Analytics providers that help us understand App usage;
- Push notification delivery services; and
- Customer support platforms.

These service providers operate under their own terms of service and privacy policies. We encourage you to review the privacy practices of key third-party providers whose services are integral to the App. We take reasonable steps to select providers whose data practices are consistent with applicable law, but we do not guarantee or accept liability for the independent data practices of any third-party service provider.

3.2 AI Model Providers — Special Disclosure

The App currently relies on third-party AI model providers to process your animal and plant care data and generate recommendations. Your animal and plant care information — including species data, tank parameters, care logs, and related inputs — is transmitted to those providers for this purpose. Uploaded images are not currently transmitted to any third-party AI provider. We reserve the right to extend third-party AI processing to uploaded images in the future, in which case this Policy will be updated to reflect that change prior to such processing occurring. We disclose categories of third-party providers rather than specific provider identities in this Policy. If you wish to know the specific third-party providers who have processed your personal data, you may submit a request to info@aquaria-ai.com and we will respond within thirty (30) days. These providers operate under their own privacy policies and terms of service. We take reasonable steps to select AI providers whose data practices are consistent with applicable law, but we cannot guarantee their independent practices.

3.3 Legal Requirements

We may disclose your information if required to do so by law, court order, or governmental authority, or if we believe in good faith that such disclosure is necessary to: (a) comply with a legal obligation; (b) protect the rights or safety of Aquaria AI, our users, or the public; or (c) detect, prevent, or address fraud or security issues.

3.4 Business Transfers

If Aquaria AI is involved in a merger, acquisition, reorganization, asset sale, or similar transaction, your information may be transferred as part of that transaction. We will notify you via the App or by email before your information is transferred and becomes subject to a different privacy policy.

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4. UPLOADED IMAGES — DETAILED PRACTICES

4.1 Private Uploads for AI Analysis

Images you upload privately for the purpose of receiving AI-generated analysis and recommendations ("Private Uploads") are:

- Stored and processed on our own servers to generate AI recommendations. Uploaded images are not currently transmitted to any third-party AI provider for processing;
- Stored on our secure servers for the duration of your account;
- Not displayed publicly on the App or shared with other users; and
- Not used for promotional or marketing purposes without your separate consent.

4.2 Publicly Shared Images

If and when social or community features are available, images you choose to share publicly through those features ("Public Uploads") are subject to a broader license as described in the Terms and Conditions, including potential use in Aquaria AI promotional and marketing materials. You should not publicly share any image that you do not wish to potentially appear in marketing contexts.

4.3 Retention and Deletion of Images

Private Uploads are retained for as long as your account is active. Upon account closure, we will delete your uploaded images within twelve (12) months, except where retention is required by law or for legitimate business purposes such as fraud prevention or legal proceedings. If you submit a formal deletion request for specific uploaded images, we will complete that deletion within forty-five (45) days of verifying your request. You may submit a deletion request at any time by contacting info@aquaria-ai.com.

4.4 Biometric and Sensitive Visual Data

We do not intentionally collect biometric data from users. If you upload images that incidentally contain images of people, we do not use facial recognition technology on such images and do not extract biometric identifiers. You should avoid uploading images containing identifiable individuals without their consent.

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5. PROMOTIONAL USE OF IMAGES

As described in our Terms and Conditions, Aquaria AI may use photographs and images you publicly share through the App in promotional and marketing materials. This may include use on our website, social media channels, advertising campaigns, press releases, and other marketing contexts.

Private Uploads used solely for AI analysis are not used for promotional purposes. The distinction between private and public uploads is governed by how you choose to share content within the App.

If you believe an image of yours has been used in a manner inconsistent with this policy, please contact us at info@aquaria-ai.com and we will promptly review your request.

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6. PUSH NOTIFICATIONS AND COMMUNICATION

6.1 Push Notifications

With your permission, we collect your device's push notification token to deliver care reminders, alerts, and App updates. You may disable push notifications at any time through your device's operating system settings. Disabling notifications may affect the functionality of scheduled care features within the App.

6.2 Email Communications

If you provide your email address, we may use it to send transactional communications (account confirmations, password resets, support responses) and, where you have opted in, promotional emails. You may opt out of promotional emails at any time by clicking the unsubscribe link in any

promotional email or by contacting us directly. Transactional emails are not subject to opt-out as they are necessary to operate your account.

6.3 In-App Notifications

We may send notifications within the App regarding App updates, new features, policy changes, and care-related information. These are part of the core App experience and cannot be disabled without ceasing use of the App.

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7. LOCATION DATA

We may request access to your device's approximate location to provide climate- and region-based aquatic animal and plant care recommendations (for example, adjusting heating recommendations based on ambient temperatures in your region). We do not collect precise GPS location data.

Location access is optional. If you decline, all App features remain available, though certain location-based recommendations may be less precise. You may revoke location permissions at any time through your device's settings. We do not share your location data with advertisers or third-party marketing platforms.

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8. SOCIAL AND COMMUNITY FEATURES — DATA PRACTICES

NOTE: The provisions of this Section apply if and when Aquaria AI makes social or community features available within the App. These terms are included prospectively and shall become operative upon the activation of such features.

8.1 Visibility of Your Information

To the extent Social Features are available, the following information may be visible to other users of the App:

- Your display name;
- Photographs you share to the community feed; and
- Short captions accompanying your shared photographs.

Social Features do not include direct messaging, open text responses, or any other form of free-form communication between users. All other account information — including your animal and plant care logs, Private Uploads, and email address — remains private and is not visible to other users.

8.2 Content Flagging and Admin Review

Users may flag photographs they believe are inappropriate or violate our Terms and Conditions. When a photograph is flagged, it is automatically hidden from public visibility and queued for

review by Aquaria AI administrators. We collect and store the following data in connection with this process:

- The identity of the user who submitted the flag report;
- The flagged photograph and its associated caption; and
- The outcome of the admin review and any enforcement action taken.

Flag reports and review records are retained for safety and accountability purposes and are not shared with any party other than Aquaria AI administrators, except where required by law.

8.3 Data Shared With Other Users

You acknowledge that photographs and captions you share through Social Features may be viewed, screenshot, or otherwise retained by other users outside of Aquaria AI's control. Aquaria AI cannot retrieve or delete content that has been copied by other users.

8.4 Account Closure and Social Data

Upon account closure, your profile and privately held data will be deleted within twelve (12) months. Photographs you have shared publicly through Social Features may remain visible to other users until that deletion occurs. If you wish to remove your shared photographs prior to account closure, you must delete them manually before submitting your closure request.

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9. DATA RETENTION

We retain your personal information for as long as your account is active or as necessary to provide the App's services. Specific retention periods are as follows:

- Account and profile data: Retained for the life of your account, and deleted within 12 months of account closure.
- Animal care logs and data: Retained for the life of your account, and deleted within 12 months of account closure.
- Private Uploads: Retained for the life of your account, and deleted within 12 months of account closure.
- Public Uploads and social content: Retained until manually deleted by you or upon account deletion, subject to the caveats in Section 8.5.
- Usage and analytics data: Retained in anonymized or aggregated form for up to three (3) years for product improvement purposes.
- Legal and compliance records: Retained as required by applicable law, which may extend beyond account closure.

We may retain certain data beyond these periods where necessary to comply with legal obligations, resolve disputes, enforce our agreements, or protect against fraud.

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10. DATA SECURITY

We implement industry-standard technical, administrative, and physical safeguards designed to protect your personal information from unauthorized access, disclosure, alteration, and destruction. These measures include:

- Encryption of data in transit using Transport Layer Security (TLS);
- Encryption of sensitive data at rest;
- Access controls limiting employee access to personal data on a need-to-know basis;
- Regular security assessments and monitoring; and
- Incident response procedures for potential data breaches.

However, no security system is impenetrable. We cannot guarantee the absolute security of your information, and we encourage you to use strong, unique passwords and to notify us immediately if you suspect unauthorized access to your account. In the event of a data breach that affects your rights and freedoms, we will notify you as required by applicable law.

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11. CHILDREN'S PRIVACY

The App is not directed at or intended for use by children under the age of thirteen (13). We do not knowingly collect personal information from children under 13. If we become aware that we have collected personal information from a child under 13 without verifiable parental consent, we will take prompt steps to delete that information from our systems.

If you are a parent or guardian and believe your child under 13 has provided personal information to us, please contact us immediately at info@aquaria-ai.com.

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12. YOUR RIGHTS AND CHOICES

Depending on your jurisdiction, you may have certain rights regarding your personal information. We honor these rights regardless of where you are located, to the extent practicable.

12.1 Access and Portability

You have the right to request a copy of the personal information we hold about you and, where technically feasible, to receive it in a structured, machine-readable format.

12.2 Correction

You have the right to request correction of inaccurate or incomplete personal information. You may update much of your account information directly within the App settings.

12.3 Deletion

You have the right to request deletion of your personal information, subject to certain exceptions (such as legal compliance obligations). Formal deletion requests will be completed within forty-five (45) days of verification. Upon routine account closure, data is purged within twelve (12) months as described in Section 9. To submit a deletion request, contact us at info@aquaria-ai.com or use the account deletion feature within the App.

12.4 Objection and Restriction

You may have the right to object to or request restriction of certain processing of your personal information, including processing for direct marketing purposes and AI model training (see Section 2.5).

12.5 Opt-Out of Promotional Communications

You may opt out of receiving promotional emails at any time by clicking the unsubscribe link in any such email or contacting us at info@aquaria-ai.com.

12.6 California Residents — CCPA Rights

If you are a California resident, you have the following additional rights under the California Consumer Privacy Act (CCPA) and the California Privacy Rights Act (CPRA):

- The right to know what personal information we collect, use, disclose, and sell;
- The right to delete personal information we have collected from you, subject to exceptions;
- The right to correct inaccurate personal information;
- The right to opt out of the sale or sharing of personal information (we do not sell personal information);
- The right to limit the use of sensitive personal information; and
- The right not to be discriminated against for exercising your privacy rights.

To exercise your CCPA rights, contact us at info@aquaria-ai.com with the subject line "CCPA Rights Request." We will respond within 45 days as required by law.

12.7 New Jersey Residents

As a company formed in New Jersey, we are committed to complying with the New Jersey Data Privacy Act and any subsequent New Jersey consumer privacy legislation. New Jersey residents have rights substantially similar to those described in Section 12.6, including rights of access, correction, deletion, and opt-out of certain data uses. Contact info@aquaria-ai.com to exercise these rights.

12.8 European Users — GDPR

If you are located in the European Economic Area (EEA), United Kingdom, or Switzerland, you have additional rights under the General Data Protection Regulation (GDPR) or equivalent legislation, including the right to data portability, the right to withdraw consent, and the right to lodge a complaint with a supervisory authority. Our lawful bases for processing your personal data include: performance of a contract (providing the App's services), legitimate interests

(improving the App and preventing fraud), consent (promotional communications and AI training), and legal obligation (compliance with applicable law).

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13. COOKIES AND TRACKING TECHNOLOGIES

The App and our website may use cookies, web beacons, pixel tags, and similar tracking technologies to collect information about your interactions with our services. These technologies help us:

- Maintain your session and authentication state;
- Remember your preferences and settings;
- Analyze usage patterns and App performance; and
- Measure the effectiveness of our marketing efforts.

You may control cookie settings through your device or browser settings. Disabling certain cookies may affect App functionality. We do not currently respond to "Do Not Track" signals from browsers, but we honor opt-out preferences submitted directly to us.

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14. THIRD-PARTY LINKS AND SERVICES

The App may contain links to third-party websites, services, or resources. This Privacy Policy does not apply to those third-party services, and we are not responsible for their privacy practices. We encourage you to review the privacy policies of any third-party services you access through the App.

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15. INTERNATIONAL DATA TRANSFERS

Aquaria AI is based in the United States. If you access the App from outside the United States, your information may be transferred to, stored in, and processed in the United States, where data protection laws may differ from those in your jurisdiction. By using the App, you consent to such transfers. Where required by law, we implement appropriate safeguards such as Standard Contractual Clauses for transfers of personal data from the EEA.

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16. CHANGES TO THIS PRIVACY POLICY

We may update this Privacy Policy from time to time to reflect changes in our practices, technology, legal requirements, or for other operational reasons. We will notify you of material changes by updating the effective date at the top of this document and, where appropriate, by providing notice within the App or via email. Your continued use of the App following such notice

constitutes your acceptance of the updated Privacy Policy. We encourage you to review this Policy periodically.

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17. CONTACT US

If you have any questions, concerns, or requests regarding this Privacy Policy or our data practices, please contact us:

Aquaria AI LLC — Privacy Team

State of New Jersey, United States of America

Email: info@aquaria-ai.com

Subject line for privacy requests: "Privacy Request — [Your Name]"

We will respond to all verifiable privacy requests within 45 days, or within the timeframe required by applicable law where that period is shorter.

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